

Authority for Personal Data
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The Minister of Foreign Affairs
P.O. Box 20061
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Date

April 11, 2023

Our reference

z2023-01244

Your letter dated

February 24, 2023

Your reference

Min-BuZa.2023.14921-26

Subject

Advice on the draft amendment to the Sanctions Regulation Iran 2012

Dear Mr. Hoekstra,

In your letter dated February 24, 2023, the Authority for Personal Data (AP) was consulted based on the provisions of Article 36, fourth paragraph, of the General Data Protection Regulation (GDPR) regarding the draft for the Regulation of the Minister of Foreign Affairs, amending the Sanctions Regulation Iran 2012 (hereinafter: the draft).

The AP has a comment on the draft and advises that this should be taken into account.

Purpose of the draft

Under the EU-Iran Regulation 267/2012 (hereinafter: EU-Iran Regulation), the provision of technical assistance or the transfer of goods or technology for the Iranian ballistic missile program is prohibited.

In 2019, the Cabinet tightened oversight of students and researchers who may have a connection to the Iranian ballistic missile program. This intensified oversight includes (preventive) screening of students and researchers in sensitive educational and research areas relevant to the production and development of ballistic missiles to assess whether there is a potential risk of violating the EU-Iran Regulation.

The draft assigns the Minister of Education, Culture and Science (OCW) the task of advising educational institutions, whether requested or not, regarding a risk of violating the EU-Iran Regulation.¹ In this context, the draft designates the Minister of OCW as the competent authority as referred to in Article 40, first paragraph, of the EU-Iran Regulation. This article obliges natural persons, legal entities, entities, and bodies to promptly provide all information that facilitates compliance with the EU-Iran Regulation to the competent authorities and to submit this information, directly or through these competent authorities, to the Commission. This article also obliges these persons, entities, and bodies to cooperate with the competent authorities in verifying this information.

Prior to

Article 40, first paragraph, of the EU-Iran Regulation contains a very broad obligation to provide information ('all information that facilitates compliance with the EU-Iran Regulation'). The AP emphasizes that this is not a blank check for processing personal data, but that all processing must comply with the Charter of Fundamental Rights of the European Union and the GDPR. This means, among other things, that the processing must comply with the principle of proportionality and the principle of data minimization². The data controller must be able to account for this.

Advice

Special personal data

According to the explanation, it is not necessary to process special personal data to carry out the advisory task.³ However, the report 'Process Design for Applications for Exemption from Knowledge Embargo, Impact Analysis and Scenario Exploration'⁴ indicates that it cannot be ruled out that information may become available regarding political preference, religion, or health. According to this report, this information is used (only) to assess whether there is a personal, academic, or professional network with/in Iran.⁵

Thus, the mentioned report shows that (sometimes) special personal data is processed. The processing of special personal data is prohibited unless there is an exception as referred to in Article 9, second paragraph, of the GDPR. The exception mentioned in the second paragraph, under g ('necessary for reasons of substantial public interest') seems to apply in this case.

The AP advises clarifying in the explanation that special personal data is being processed and substantiating the exception for this.

1 More specifically, this advice concerns violations of the prohibitions in Articles 4bis and 4ter of the EU-Iran Regulation. The advice is given in accordance with the Minister for Foreign Trade and Development Cooperation.

2 Article 5, first paragraph, under c, of the GDPR states that personal data must be limited to what is necessary for the purposes for which they are processed ('minimal data processing').

3 Explanation p. 3-4.

4 This report concerns the screening process of individuals who (wish to) participate in one or more proliferation-sensitive areas of education and research.

5 Process Design for Applications for Exemption from Knowledge Embargo, Impact Analysis and Scenario Exploration, March 30, 2021, p. 12.

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3/3

Workload AP

The AP notes that the draft is not expected to require additional effort from the AP.

Disclosure of the advice

The AP intends to make this advice public on the website www.autoriteitpersoonsgegevens.nl as soon as the text of the (amended) draft is made public. The AP would like to be informed of the expected timing of the disclosure as soon as this is known.

Sincerely,

Authority for Personal Data,

Aleid Wolfsen

Chairman